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Athens, 28-12-2023

Protocol No.: 3344

DECISION 41/2023

The Hellenic Data Protection Authority (hereinafter "Authority") convened at the invitation of its President in a meeting via videoconference on Tuesday, 13-06-2023, at 10:00, in order to examine the case referred to in the background of this document. Present were the President of the Authority, Konstantinos Menoudakos, the regular members Spyridon Vlachopoulos, Konstantinos Lamprinouidakis, Charalampos Anthopoulos, Christos Kalloniatis, Aikaterini Iliadou, and Grigoris Tsolias, as the rapporteur. Present, without voting rights, were Stefania Plota, special scientist - lawyer, as assistant rapporteur, and Irini Papageorgopoulou, employee of the administrative affairs department, as secretary.

The Authority took into account the following:

With complaint No. G/IN/1444/22-02-2019, A (hereinafter "complainant") appealed to the Authority against the company Google LLC (hereinafter "Google" or "company") for failure to satisfy the right to be forgotten and the right to object regarding results appearing in Google's search engine based on the search criterion of his name for the following links:

i.

...

ii.

...

iii.

...

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The complainant states that the above three (3) links contain outdated and inaccurate data about him and do not mention his vindication by decisions of the Greek Justice, and although he has repeatedly requested the removal of the transmission as results from the complained company and the search engine, the company's response to ... regarding the removal of the above was negative, directing him to resolve the issue that has arisen with the websites containing the publications. The Authority, in the context of examining the above complaint, sent to the companies Google LLC and Google Hellas the document No. G/OUT/1444-1/23-04-2019 for the provision of opinions, and the company Google LLC responded with document No. G/IN/3292/09-05-2019 that the complainant submitted to Google the request for deletion of specific links (URLs) from the search results, which had been submitted for defamation reasons and was rejected by the response of ... from Google. With this document, the company further elaborated its views on the complaint.

Subsequently, the Authority, with document No. G/OUT/1444-2/04-06-2019, forwarded the company's response to the complainant, inviting him to present his views to the Authority regarding the claims mentioned therein, and the complainant submitted document No. G/IN/4248/13-06-2019, which was subsequently forwarded to the companies Google LLC and Google Hellas with document No.

G/OUT/1044/04-05-2022, with which these companies were invited to express their views on the complainant's claims, and in particular, whether the disputed links have been removed or whether they maintain their previous response No. G/IN/3292/09-05-2019. The company Google LLC responded to the above with document No. G/IN/7203/19-05-2022, mentioning the electronic communication that took place on 17-05-2022 with the complainant's attorney for the resolution of the case.

In light of the above, the Authority, with documents No. G/OUT/839/05-04-2023 and G/OUT/838/05-04-2023, invited the aforementioned companies and the complainant, as legally represented, to attend, via videoconference, the plenary session of the Authority on Tuesday, 11-04-2023, in order to discuss the complaint in question. In the above session, the request for

postponement submitted by the attorney of the complained company was discussed, which was accepted by the Plenary, and a new date for the Plenary session to discuss the complaint in question was set for 30-05-2023. On 29-05-2023, one day before the Plenary session, the complainant's attorney informed the Authority with email No. G/IN/4072/30-05-2023 that he was unable to attend the Authority's session and stated that "the complainant has been satisfied with the actions of Google regarding his specific complaint." At the plenary session of the Authority on 30-05-2023, the representatives of the company, Charikleia Daouti (AMDSA ...) and Evangelia Tsirigoti (AMDSA ...), attended, who, after being informed by the Plenary about the statement of the complainant's attorney Vasileios Sotiropoulos (AMDSA ...), stated that indeed the company has satisfied the complainant's requests and the links under examination no longer appear as results in the Google search engine based on the complainant's name.

The Authority, after examining all the elements of the file and what emerged from the hearing process before it, the memoranda and the statements of the parties, having heard the rapporteur and the clarifications from the assistant rapporteur, who attended without voting rights, after thorough discussion,

THOUGHT ACCORDING TO THE LAW

1. Since, from the provisions of Articles 51 and 55 of the General Data Protection Regulation 2016/679 (GDPR) and Article 9 of Law 4624/2019 (Government Gazette A' 137), it follows that the Authority has the competence to supervise the application of the provisions of the GDPR, this law, and other

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regulations concerning the protection of individuals from the processing of personal data.

2. Whereas Google LLC, based in the United States of America, with its letter No. Γ/ΕΙΣ/10060/14-12-2018, informed the Authority that, although Google Ireland will be the data controller for user data collected and processed when users interact with Google services - including data collected through the Google search engine, where users choose to save activity data or search history in their accounts - Google LLC will continue to be the data controller for the indexed content of the Google search engine and will manage the deletion process within the framework of the right to be forgotten. Therefore, in the case under consideration, the purpose and means of processing to satisfy the right to erasure (the right to be forgotten) as per Article 17 of the GDPR are fully determined by Google LLC, as it states, whose establishment is located outside the Union. Consequently, although this specific activity concerns data subjects located within the territory of the Union, since Google LLC does not have a main establishment in the Union for the activity under consideration, the "one-stop-shop" mechanism established by the GDPR, as per Articles 56 and 60, does not apply, and thus, according to the provisions of Articles 55 paragraph 1, 2 paragraph 1, and 3 paragraph 2 of the GDPR and 13 paragraph 1 subparagraph (g) of Law 4624/2019, the Authority has the competence to address the complaint of A regarding the violation of the right to erasure.

3. Whereas the activity of Google Hellas/Athens (GOOGLE HELLAS Internet Applications Single Member Limited Liability Company) is the provision of marketing services to Google Ireland, the complaint regarding the rejection of the request for the deletion of links in the context of satisfying the right to be forgotten is examined only concerning Google LLC as the data controller of the indexed content of the Google search engine.

4. Whereas the subject of the complaint is the non-satisfaction of the right to be forgotten, according to Article 17 paragraph 1 of the GDPR, of the complainant regarding the appearance of links in the search results of the Google search engine based on his name, for which the complainant stated to the Authority that he was satisfied by the complained company, as the following links do not appear as a result:

i. ...

ii. ...

iii. ...

5. Whereas the Authority found, after checking the search engine based on the complainant's name, that the links listed in the above paragraph 4 do not appear as a result, and therefore, as stated by the

complainant, his request was satisfied. Consequently, there is no reason for further examination of the complaint.

Based on the above, the Authority unanimously decides that the complaint is rendered moot.

FOR THESE REASONS

The Authority:

Files the complaint as moot, due to the satisfaction of the complainant's request for the deletion of the three links from the search results of the Google search engine based on his name.

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The President

The Secretary

Konstantinos Menoudakos

Irini Papageorgopoulou